

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ASHLEY CRAVENS,

Petitioner

VS.

ELIE JOE ATTYA,

Respondent

) Case Number: FDV-22-816591

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: REQUEST TO SEAL THE PUBLIC RECORD OF THE DOMESTIC
VIOLENCE RESTRAINING ORDER CASE PURSUANT TO APPLICABLE CALIFORNIA LAW

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ashley Cravens (Mother) and Respondent Elie Attya (Father) have one adult child, Songia, and one minor child, Gianna (DOB: 8/13/2015).
- 2) On 12/21/2022, pursuant to Father's agreement, the Court issued a 1-year Domestic Violence Restraining Order, which expired on 12/21/2023 (and was not renewed).
- 3) Now on for hearing is Father's Request for Order filed 7/20/2026 asking the Court to "seal the records in this matter from public access." In the alternative, Father requests that the Court "consider a narrower order limiting public access to the DVRO order and related records that appear in public searches." Father states that he complied with the terms of the DVRO while it was in effect and Mother did not request that the DVRO be renewed. Father states he is requesting sealing because he is concerned about future employment opportunities, professional reputation, and personal privacy. Father states, "Many employers and organizations conduct

1 background checks or online searches, and the existence of a DVRO record may be viewed
2 without the context that the matter involved an expired one-year order, that it was resolved by
3 agreement, and that there is no current order in effect.” Father also states, “Continued public
4 disclosure of these records causes unnecessary harm to my privacy and reputation.”

5 4) Attached to Father’s Request for Order is a declaration signed by Mother wherein Mother states,
6 “I support Respondent’s request that the court records be sealed, or that public access to the
7 records be limited...”

8 5) Per the Proof of Service filed 7/20/2026, Father’s Request for Order and related moving papers
9 were personally served on Mother on 7/20/2026.

10 **B. Findings and Order**

11 1) Under California Rule of Court, rule 2.550(d), “The court may order that a record be filed under
12 seal only if it expressly finds facts that establish: (1) There exists an overriding interest that
13 overcomes the right of public access to the record; (2) The overriding interest supports sealing the
14 record; (3) A substantial probability exists that the overriding interest will be prejudiced if the
15 record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive
16 means exist to achieve the overriding interest.”

17 2) The Court also notes the case of *Marino v. Rayant* (2025) 110 Cal.App.5th 846, 864 wherein the
18 Court of Appeal found that a trial court properly denied a request to seal a case record in which a
19 civil harassment restraining order was granted and later terminated. In that case, the restrained
20 party argued that the potential harm to his reputation and future job prospects justified sealing the
21 record. The Court of Appeal agreed with the trial court’s denial of the request to seal, noting the
22 restrained party had failed to prove that the unsealed case record had caused him to lose job
23 prospects, particularly "when there could be other reasons unrelated to the restraining order for
24 why [restrained party] did not get the job."

25 3) The Court finds that the parties have not identified an overriding interest that overcomes the right
26 of public access to the records in this case, nor does the Court find that the parties have shown
27 that a substantial probability exists that any purported overriding interest will be prejudiced if the
28 record is not sealed.

29 4) Father’s request to seal records in this case is denied.

1 5) The Court will prepare the Findings and Order After Hearing.
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29